

necessary to carry out the invention. Therefore, claim 4 as amended was in conformity with Art. 123(2) EPC. See also T 273/10.

In T 1906/11 the board emphasised that classifying an amendment as an "intermediate generalisation" or otherwise, for example as an "omission of an originally claimed feature" or a "multiple selection from two groups of alternative features" did not permit, as such, the drawing of any conclusion about the allowability of this amendment under Art. 123(2) EPC. According to that decision, the only relevant question would be whether a skilled person faced with the amended version of the application or patent, as compared to a skilled person having seen only the version originally disclosed, would derive from that amended version any **additional technically relevant information**. Only if such additional information was derivable can there be an infringement of Art. 123(2) EPC (cited in T 802/13). In T 248/12 the board stated that in respect of the "technical relevance" of the added information, case T 1906/11 could not be understood to define a new standard for judging amendments with respect to Art. 123(2) EPC since this would be at odds with the "gold standard" in G 2/10, OJ 2012, 376. See also T 1791/12 where the board considered that no divergent interpretations of the principles contained in G 2/10 for judging amendments were apparent in T 1906/11. The board in T 1471/10 considered that the ultimate standard for assessing compliance with the requirements of Art. 123(2) EPC in the case of an intermediate generalisation remains the "gold standard" (as set out in chapter II.E.1.3.1; see also T 2392/10, T 1791/12).

In T 2311/10 the board held that, in the case of an intermediate generalisation, the three-point or essentiality test was unhelpful or even misleading. See also T 1840/11, T 2095/12 and T 2489/13. On the three-point or essentiality test in general see in this chapter II.E.1.4.4 above.

In T 284/94 (OJ 1999, 464) the board stated that an amendment of a claim by the introduction of a technical feature taken in isolation from the description of a specific embodiment was not allowable under Art. 123(2) EPC 1973 if it was not clear beyond any doubt for a skilled reader from the application documents as filed that the subject-matter of the claim thus amended provided a complete solution to a technical problem unambiguously recognizable from the application. This criterion was applied e.g. in T 1644/11, T 1818/11 and T 2561/11.

In T 1387/05 the board noted that the same principles were to be applied for both Art. 76(1) EPC and Art. 123(2) EPC 1973. It followed that it was normally not allowable under Art. 76(1) EPC 1973 to extract features from a set of features which were originally disclosed only in combination in a parent application and to claim such extracted features in a divisional application isolated from their context, namely the combination disclosed in the parent application. See also the abstract for the consolidated cases T 1500/07, T 1501/07 and T 1502/07 in chapter II.E.1.9.2 below.

1.9.2 Examples regarding the requirement "no clearly recognisable functional or structural relationship"

In T 25/03 the board stated that extracting isolated features from a set of features which had originally been disclosed in combination would only be justified in the absence of any clearly recognisable functional or structural relationship among said features (see e.g. T 1067/97). The board concluded that since claim 1 at issue resulted from the extraction of isolated steps from the specific combination (here a sequence of steps) disclosed as **essential for obtaining the desired result in the embodiment** of Figure 4, and since the appellant had not referred to other parts of the application as filed that could support the proposed amendment, and no such parts had been identified by the board, claim 1 as amended in accordance with the first auxiliary request did not meet the requirements of Art. 123(2) EPC 1973. An example with the opposite conclusion, that is, in which the board held that the skilled person would consider the omitted features to be non-essential for the identified technical effects, can be found in T 1601/16 (albeit without reference to the criterion stipulated in T 1067/97).

In T 582/91, the respondent (opponent) was of the opinion that when restricting a granted claim by introducing subject-matter from the dependent claims all the **features of the dependent claims** in question should be incorporated in the new independent claim. Contrary to this opinion the board considered that one feature of a dependent claim could be readily combined with a preceding independent claim as long as the skilled person recognised that there was clearly no close functional or structural relationship between the one feature of that dependent claim and its other features, or between that one feature and the teaching of other dependent claims referred to in that dependent claim. If this was the case, no objections under Art. 123(2) EPC 1973 arose (see also T 938/95).

In the consolidated cases T 1500/07, T 1501/07 and T 1502/07, the board applied the established case law of the boards of appeal concerning Art. 123(2) EPC to the case of Art. 76(1) EPC 1973. The board stressed that where newly claimed subject-matter was based on the extraction of features in isolation from a set of features originally disclosed in combination (e.g. in a specific embodiment in the description) the criterion that this subject-matter had to be directly and unambiguously derivable by the skilled person from the original disclosure was met, if there was no clearly recognizable functional or structural relationship between the features, i.e. when they were not inextricably linked. What is decisive is determining which specific combinations of features were originally taught by the parent, and whether the skilled person recognises immediately and unequivocally from the totality of the disclosure when read contextually and using his common general knowledge that, and which, certain features are **incidental to the proper functioning of these specific embodiments**, and that these can be dispensed with without consequence for the remaining features. In the case before the board, the fact that the claimed features were not given any special prominence, and that they were functionally and structurally bound to the other, remaining features indicated that these criteria were not met.

In T 1469/15 the board saw no structural or functional relationship between the extracted feature and the remaining features of the combination. This conclusion was not invalidated by the appellant-opponent's observation that the claim covered **non-disclosed**

hypothetical embodiments. The relevant question when assessing compliance with Art. 76(1) or Art. 123(2) EPC was whether an amendment added new subject-matter, i.e. new information.

A further example of a clearly recognisable functional or structural relationship between the isolated feature(s) and the other features of a set of features originally disclosed in combination can be found in T 833/16. In this case the features in question were the two characteristics defining a type of magnetic signal generated by the coil disclosed in the application. There was no disclosure, explicit or implicit, that the omitted feature was merely optional or preferred.

In T 886/15 the board examined whether the embodiments disclosed in certain figures could constitute, on their own, a sufficient basis for the features added in claim 1 of the main request. The board recalled that the selection of some features from a group of features originally disclosed in combination is allowable under Art. 123(2) EPC if the selected and omitted features are neither structurally nor functionally linked. The board held that, in the case in hand, in the absence of any indication, in the drawing and the corresponding portion of the description, as to the effects resulting from the relevant feature, it was impossible to recognise whether the above conditions for selecting a feature from its context were fulfilled. According to the board, a further consequence was that it was impossible for the skilled person to recognise what purpose was meant to be achieved by the selected features in the context of the invention. They thus could not be considered to be the deliberate result of technical considerations directed to the solution of the technical problem involved (cf. T 398/00, see chapter II.E.1.13.2 "Schematic drawings" below).

1.9.3 Further examples of unallowable intermediate generalisations

In T 1408/04 a specific selection had been made in amended claim 1 from the broad range of topsheet/backsheet structures within the scope of claim 1 as granted. The board considered that, to avoid an intermediate generalisation (i.e. an undisclosed combination of selected features lying somewhere between an originally broad disclosure and a more limited specific disclosure), all the necessary features of the specific selection must be included in the claim. The selection in this case came from the drawings, which, however, also showed a particular (albeit commonly used) type of topsheet/backsheet connection. This particular connection was lacking in the claim. Thus an intermediate generalisation was present. Cited e.g. in T 163/13.

In T 448/16 the board emphasised that the idea of added feature f had to be at least implicitly disclosed in the parent application as a teaching that the skilled person would immediately recognise **as distinct and separable** for it to be introduced in isolation into claim 1. The board did not consider that the skilled person, **without foreknowledge** of what they are looking for, would immediately identify the feature in question as a distinct and separable aspect of the embodiment from which it was isolated.

In T 1365/16 the board held that whether and how the skilled person would generalise the embodiment of Figure 8 was neither inherent nor implicit from the disclosure as filed, but

concerned matters (if any) related to obviousness. This was however not a sufficient basis to comply with Art. 123(2) EPC (G 2/10, OJ 2012, 376). In the boards view, in particular the considerations of T 1538/12 (regarding general statements at the end of the description burdening the skilled reader with having to work out which combinations of features from the detailed embodiments might be claimed together) applied *mutatis mutandis* to the general statement that "the invention ... may equally be utilized on symmetric key agreement protocols".

For further examples of unallowable intermediate generalisations, see T 1004/01 (summarised above in this chapter II.E.1.5.2 "Forming a range with isolated value taken from example"), T 166/04 (feature omitted although its function was presented as being essential to achieving the desired result), T 191/04 (no hint for skilled reader that the claimed robot could be associated with a milking box without having a further feature), T 200/04 (nothing in the description indicating that the features omitted in the claim, as compared to the examples, were not essential), T 1164/04 (isolated feature disclosed only in combination with other features), T 911/06 (omission of a feature that is consistently presented in the application as necessary for a certain function), T 273/10 (no indication in the application as filed that the omitted features served no purpose, were optional or could be replaced by other technically equivalent means), T 775/17 (isolated feature was inextricably linked to the other features defined in the relevant example).

1.9.4 Further examples of allowable extractions of isolated features from a set of features

In the above-mentioned decision T 1408/04, the board considered, with regard to the third auxiliary request, that the particular definition of the topsheet/backsheets sealed connection was not a generalisation of the content of the originally filed application. The skilled person would immediately realise that the specific topsheet/backsheets sealed configuration as shown in Figures 1 to 3 was generally applicable also to other aspects of the invention and was not limited only to the set of features shown in these Figures. The other elements present in these Figures were not inextricably linked to the topsheet/backsheets sealed configuration, as also confirmed by the description, which categorised these features as optional.

In T 500/11 the amendment in claim 1 at issue corresponded to the restriction of the range "between 50 to 10000 ppm of chromium" by the lower end value of 550 ppm. It was uncontested that there was a literal basis for this specific value in example 3 of the patent, however not in combination with the other features of amended claim 1. The question to be answered was whether the feature "550 ppm Cr" was **inextricably linked** to the other features defined in the relevant example of the patent. The board observed that all the features were parameters which might be varied individually and each of these variations would necessarily lead to a different result on the selectivity to TCS. The aim of the invention – namely increasing the selectivity to TCS – was merely achieved by the addition of selected amounts of chromium to silicon and thus this feature was not "closely related to the other characteristics of the working example and applies directly and unambiguously to the more general context" as required in T 962/98. The current decision was also in line with T 273/10. It followed that the picking out of the value 550 ppm was plainly acceptable in the case at issue, with the consequence that the requirements of Art. 123(2) EPC were

fulfilled. For further cases when a **range** is formed by taking an isolated value from an example, see also chapter II.E.1.5.2.

For further examples where the board considered that the extraction of isolated features from a set of features was not an unallowable intermediate generalisation, see e. g. T.300/06 and T.266/12.

1.10. Specific derived from generic

1.10.1 Specific term or embodiment derived from generic disclosure

It is a generally established principle in the case law of the boards of appeal that a generic term or embodiment does not disclose a specific term or embodiment unless the application teaches otherwise (T.88/12). In the case in hand in T.88/12 the generic term "a laundry machine" did not disclose the specific term "a drying machine".

In T.367/92 the board rejected an amendment because it contained a specific term which could not be considered to be clearly and unambiguously derivable from the originally disclosed generic term. In this case the issue boiled down to the question whether the generic term "polyester" could be equated with the specific term "polyethylene terephthalate". The sole document added by the appellant (patent proprietor) in support of this interpretation proved only that polyethylene terephthalate was a polyester (which was never under discussion), but did not show that "polyester" could be interpreted as implicitly meaning "polyethylene terephthalate".

In T.187/91 the invention and its preferred embodiments had been described throughout the application as filed as having more than one light source. However, there was an indication in the description that although the preferred embodiment of the invention was shown as having three light sources, "it will be understood that more or less sources [...] may be utilized". The board held that a specific example (one light source) within a generic disclosure (more or less than three light sources) forming part of the description of the invention in an application as filed is part of the content of the application as filed if the skilled reader would **seriously contemplate** such specific example as a possible practical embodiment of the described invention, having regard to its context in the remainder of the application as filed, and subject to any understanding of the skilled reader to the contrary. In the case at issue the board held that the skilled reader of the application would seriously contemplate the use of only one light source.

For cases where the boards came to the contrary conclusion that the skilled person would not seriously contemplate the respective specific choice which was claimed, see e.g. T.725/99 and T.1038/01.

1.10.2 Component of entity derived from entity

In T.1228/01 the appellant (applicant) inferred that the reference to a deposited phage in a claim, whose correct deposit was mentioned in the application as originally filed, was an implicit disclosure of a part of a nucleotide sequence contained in the phage, although the